

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC., <i>Complainant</i>	)	
	)	
	)	
	)	
vs.	)	DOCKET NO. 23-13
	)	
EASY SHIPPING CORPORATION, <i>Respondent</i>	)	
	)	
	)	

RESPONDENT’S RESPONSE PER ORDER ENTERED ON MAY 24, 2024

NOW COMES the Respondent, EASY SHIPPING CORPORATION, by and through their attorneys, RAFATI, WARD & ASSOCIATES, P.C., and for their Response Per Order Entered on May 24, 2024 by the Honorable Judge Chintella, state as follows:

1. On April 1, 2024, Complainant served their written discovery upon the Respondent by and through Respondent’s attorney of record Fadi Y. Rafati.
2. Per the Scheduling Order issued by this Honorable Commission, the Parties were to close written discovery by May 23, 2024.
3. Complainant began sending Respondent’s attorney emails requesting for the responses to the written discovery to be tendered sooner, on or before April 19, 2024.
4. In good faith and in anticipation of doing so, Respondent’s attorney agreed to do so and was hoping to do so.
5. On or about April 22, 2024, Respondent’s attorney sent an email to Complainant advising them that the responses will be sent by Mr. Rafati’s office.
6. Mr. Rafati wanted to send the responses but was faced with a family medical

emergency on the same day which was very serious and caused Mr. Rafati to be out of the office for over 3 weeks.

7. Mr. Rafati's wife was diagnosed with what was potentially feared to be breast cancer due to a lump.

8. Mr. Rafati's wife also suffers from schizophrenia and is not allowed to drive.

9. Mr. Rafati for approximately 25 days was consumed with this emergency and although intended on complying with the agreement it was frustrated by the unforeseen events.

10. The family medical emergency that Mr. Rafati had to deal with has been ongoing since 2023 and multiple surgeries have been done.

11. Nonetheless, Mr. Rafati was able to send Complainant the responses to all of the written discovery on May 22, 2024.

12. Complainant responded to the email with the responses confirming that they received them.

13. Respondent has not purposefully or willfully attempted to delay or refuse to actively participate in the proceedings.

14. Respondent relies on their attorney to comply with all rules and deadlines.

15. Mr. Rafati as counsel for Respondent did not intentionally nor willfully attempt to deny or delay any responses to Complainant's requests.

16. Further, Respondent would like to note that Complainant's written discovery was repetitive, objectionable and also requests for many materials which they already have possession of.

17. Nonetheless, Respondent went ahead and sent the responses to these requests.

WHEREFORE, the Respondent, respectfully prays that this Honorable Commission enter an Order not holding Respondent in default and allowing the matter to be decided upon the merits and for any other relief this Honorable Commission deems proper.

Respectfully submitted,

/s/ Fadi Yousef Rafati
Fadi Yousef Rafati

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